CRIMINALIZING REPORTING

# Bangladesh v. Shahidul Alam

9 October 2026

# CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

# ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

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|---|---|
| **Jurisdiction** | Bangladesh |
| **Original report** | January 2023 |
| **Dated update covered** | 7 August 2025 |
| **Research cutoff** | 9 October 2026 |
| **Historical assessment** | No letter grade assigned in the original |

## SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

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# EXECUTIVE SUMMARY

**LATEST VERIFIED POSITION**

## High Court quashed case on 7 August 2025; subsequent appellate position unverified

Quashing is corroborated by local court reporting and Amnesty. No later State appeal, leave application, stay or appellate disposition was verified. The 2022 appellate proceedings concerned an earlier challenge and must not be mistaken for an appeal from the 2025 order.

The latest verified case-disposing event is the High Court's 7 August 2025 quashing of the ICT Act case against Shahidul Alam, corroborated by contemporaneous local reporting and Amnesty the following day. This followed a November 2024 stay of the investigation. A subsequent appeal or stay against the quashing was not established through 9 October 2026, so unconditional finality should not be claimed. [2] [3] [4]

The relief is distinct from Alam's release on bail in 2018 and from an acquittal after trial. It changes the prosecution's legal posture, while not itself establishing compensation or accountability for alleged mistreatment. The January 2023 original assigned no letter grade. [1]

1. User-supplied original report, January 2023.
2. Dhaka Tribune, 4 November 2024. High Court suspends investigation against Sha...
3. New Age, 7 August 2025. HC quashes ICT case against Shahidul Alam
4. Amnesty International, 8 August 2025. Bangladesh: Dismissal of court case against S...

# BACKGROUND AND PROCEDURAL HISTORY

Alam was arrested on 5 August 2018 after public commentary and an Al Jazeera interview concerning student road-safety protests. A case under ICT Act Section 57 followed. The original examined the speech allegations, detention, alleged torture and the consequences of Section 57's repeal and statutory savings provisions. It argued that the prosecution should not continue where the relevant savings provision did not preserve an investigation at that stage. That argument was not itself a court disposal. [1]

The report also traced an earlier challenge: a 2021 High Court ruling on maintainability and rejection of leave by the Appellate Division on 27 November 2022. Accordingly, when the original appeared in January 2023, it could not report the later 2024 stay or 2025 quashing. References to the 2022 appeal in subsequent coverage describe this earlier litigation, not a proven State appeal from the 2025 order. [1]

## KEY PROCEDURAL DATES

| | |
|---|---|
| **5 August 2018** | Alam arrested; Section 57 investigation followed. [1] |
| **15 November 2018** | Bail granted, distinct from actual release. [1] [4] |
| **20 November 2018** | Release recorded by Amnesty; not inferred from sentence length. [4] |
| **27 November 2022** | Appellate Division rejects leave in earlier litigation, as recorded in the original. [1] |
| **4 November 2024** | High Court stays investigation and issues rule asking why proceedings should not be quashed. [2] |
| **7 August 2025** | High Court quashes ICT Act case; local reporting describes rule made absolute. [3] [5] |
| **8 August 2025** | Amnesty confirms dismissal and advocates further remedies; statement is not another court order. [4] |

1. User-supplied original report, January 2023.
2. Dhaka Tribune, 4 November 2024. High Court suspends investigation against Sha...
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5. Ajker Patrika, 7 August 2025. Shahidul Alam's ICT Act case quashed (Bangla-...

## SUBSEQUENT DEVELOPMENTS

Dhaka Tribune reported that the High Court suspended the investigation on 4 November 2024 and issued a rule calling for justification of its continuation. A rule to show cause is not yet a final quashing order. The report therefore supplies a genuine intermediate development without establishing that the prosecution had already ended in 2024. [2]

New Age reported that the High Court quashed the case on 7 August 2025. Bangla-language Ajker Patrika independently reported the order, identified the bench of Justices Mustafa Zaman Islam and Tamanna Rahman Khalidi, and described the rule as made absolute. These accounts support an actual judicial disposal, not simply counsel's hope that the proceedings would be withdrawn. The signed reasons were not obtained, so the precise ratio and operative scope should not be reconstructed from the original report's legal argument. [3] [5]

Amnesty welcomed the dismissal on 8 August and reiterated its assessment that the prosecution arose from protected expression. It also called for remedies for the arrest and alleged torture. Those are attributed NGO assessments and demands, not a demonstrated judicial award. Amnesty's chronology distinguishes the 15 November 2018 bail order from release on 20 November, an important separation when describing liberty. [4]

## LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

the new order materially supersedes the original's description of an investigation permitted to continue following the earlier unsuccessful challenge. The change is not merely a better national political climate; it is a reported case-specific judicial act. The November stay and August quashing must therefore be treated as separate procedural stages. [1] [2] [3]

quashing removes the case on the reported High Court order, but a verified finality claim requires checking any subsequent State leave application and stay. Searching for a later appeal did not establish one; results about the 2022 appeal cannot answer that question. Absence of a located appeal is not proof that no appeal exists. [1]

termination of the prosecution and redress for detention or mistreatment are distinct issues. A favorable disposal does not establish compensation, a finding of torture or proceedings against those responsible. Those questions remain open absent separate remedial records. [4]

1. User-supplied original report, January 2023.
2. Dhaka Tribune, 4 November 2024. High Court suspends investigation against Sha...
3. New Age, 7 August 2025. HC quashes ICT case against Shahidul Alam
4. Amnesty International, 8 August 2025. Bangladesh: Dismissal of court case against S...
5. Ajker Patrika, 7 August 2025. Shahidul Alam's ICT Act case quashed (Bangla-...

# CONCLUSION AND OUTSTANDING RECORDS

The follow-up should report the verified 7 August 2025 quashing prominently, while qualifying any statement about subsequent appellate finality. It should preserve the distinction between the earlier release on bail, termination of the case and unresolved accountability claims. [3] [4]

## RECORDS NOT VERIFIED

1. Signed 7 August 2025 High Court judgment, case number, reasons and exact operative scope.

2. Whether the State filed a leave-to-appeal application against that order, and whether any stay or subsequent decision was issued.

3. Any compensation, torture investigation or other remedial proceedings and their outcomes.

4. Current registry confirmation rather than reliance on older appeals or retrospective NGO summaries.

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

3. New Age, 7 August 2025. HC quashes ICT case against Shahidul Alam

4. Amnesty International, 8 August 2025. Bangladesh: Dismissal of court case against S...

# SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Bangladesh v. Shahidul Alam**
TrialWatch / original report authors. January 2023.
Local PDF: bangladesh-v-shahidul-alam.pdf
Coverage: Historical case baseline and original assessment

2. **High Court suspends investigation against Shahidul Alam**
Dhaka Tribune. 4 November 2024.
Read source at www.dhakatribune.com
Coverage: November 2024 stay and rule; its conflicting retrospective appeal date is not adopted.

3. **HC quashes ICT case against Shahidul Alam**
New Age. 7 August 2025.
Read source at www.newagebd.net
Coverage: Actual 7 August quashing; no later appeal outcome supplied.

4. **Bangladesh: Dismissal of court case against Shahidul Alam is welcome but more progress needed on freedom of expression**
Amnesty International. 8 August 2025.
Read source at www.amnesty.org
Coverage: 7 August dismissal; 2018 bail and release dates; advocacy concerning remedies, not a remedial judgment.

5. **Shahidul Alam's ICT Act case quashed (Bangla-language report)**
Ajker Patrika. 7 August 2025.
Read source at www.ajkerpatrika.com
Coverage: Rule made absolute; named High Court bench; earlier 2022 appellate history.